

INTERNAL LEGAL MEMO

Case #24

ATLAS RETAIL GROUP SARL v. NOVA LOGISTICS TUNISIA SARL

Date: April 16, 2026

Subject: SLA breach, invoice dispute, and settlement posture

Overview:

The dispute concerns repeated SLA breaches, disputed invoice amounts, and the parties' competing positions on termination and cure.

Atlas issued a formal notice of breach on March 29, 2026.

Nova responded on April 2, 2026 and denies that termination prerequisites are met.

Key figures:

- SLA on-time delivery: 92.4% / 93.1% asserted by Atlas
- SLA on-time delivery: 95.3% / 94.8% asserted by Nova
- Invoice claimed: 98,420 TND
- Accepted pending verification: 71,960 TND
- Disputed amount: 26,460 TND



Key dates and posture:

- Master Service Agreement effective date: January 12, 2026
- Notice of breach: March 29, 2026
- Counterparty response: April 2, 2026
- Revised invoice deadline: April 6, 2026
- Cure deadline: within 15 days of notice
- Settlement offer: without prejudice on April 7, 2026

Assessment

The strongest legal pressure point is evidentiary proof of breach, causal link, and invoice support

The matter still appears negotiable, but the record should be cleaned into a single chronology before escalation.

Recommended next steps

1. Lock the chronology.
2. Map each KPI figure to its source document
3. Separate breach arguments from payment arguments.
4. Prepare a short settlement position preserving rights.